

Judgment Sheet

IN THE LAHORE HIGH COURT AT LAHORE
JUDICIAL DEPARTMENT

Civil Revision No.2838 of 2012

Province of Punjab, etc.

Versus

Mian Gohar Mubashar Hameed

J U D G M E N T

Date of Hearing	27.05.2021
For the Petitioner:	Mr. Zafar Rahim Sukhera, Assistant Advocate General, Punjab.
For the Respondent	The respondent was proceeded against ex-parte, vide order dated 13.2.2017

Raheel Kamran J:- Through this civil revision, the petitioners have challenged the judgment and decree dated 21.06.2012 passed by the learned Additional District Judge, Khushab whereby appeal preferred by the respondent against the judgment and decree dated 02.07.2010 passed by the learned Civil Judge, Khushab, dismissing his suit for declaration and permanent injunction, was accepted.

2. Facts in the background of the titled civil revision are that an agreement to sell was executed on 10.02.1987 between respondent and M/S Zafar Saleem Brothers in respect of land measuring 20 acres 2 kanals 5 marlas situated in Jauharabad for a consideration of Rs.10,00,000/-. Thereafter, some dispute arose whereupon the respondent instituted suit for specific performance of the agreement to sell, which was decreed in his

favour on 30.07.1997. The said judgment and decree was assailed before this Court in appeal during pendency whereof the said parties entered into a compromise in terms whereof decree was passed regarding 40% of the aforementioned land against consideration of Rs.400,000/- whereas suit of the respondent was dismissed to the extent of remaining 60% of the land. In other words, this Court decreed the suit in respect of 64 kanals 17 marlas 8 sirais against consideration of Rs.400,000/-.

3. The respondent preferred an execution petition before the learned Civil Court, Khushab whereupon a registered sale deed was executed in his favour. He submitted stamp duty of Rs.20,000/- according to value specified in the sale deed executed on the basis of the aforementioned decree.

4. Petitioner No.3 issued notice dated 04.05.2001 to the respondent for the recovery of Rs.12,78,000/- being the deficient stamp duty calculated on the basis of Valuation Table dated 28.5.1998 issued by the Collector, Khushab. The respondent challenged the aforementioned notice dated 04.05.2001 in his suit for declaration and permanent injunction.

5. The petitioners contested the suit by filing a written statement on legal as well as factual grounds and prayed for dismissal of the same.

6. Out of divergent pleadings of the parties, the learned trial court framed the following eleven issues:-

1. *Whether the plaintiff has no cause of action and locus standi to file this suit? OPD*
2. *Whether the suit is not maintainable in its present form? OPD*
3. *Whether the suit is not maintainable in view of preliminary objection No.2 of written statement? OPD*
4. *Whether the suit prior to the issuance of notices to the defendants is not maintainable? OPD*
5. *Whether the plaintiff is estopped by his words and conduct to file this suit? OPD*
6. *Whether the suit is not maintainable due to non-joinder of necessary parties? OPD*

7. *Whether this court has no jurisdiction to try the suit? OPD*
8. *Whether the suit has not been properly valued for the purposes of court fee and jurisdiction, if so, what is the correct valuation? OPD*
9. *Whether the defendants are entitled to special costs u/s 35-A CPC? If so, that to what extent? OPD*
10. *Whether the plaintiff is entitled to the decree of declaration as well as permanent injunction alongwith consequential relief and notice dated 04.05.2001 for payment of Rs.12,78,000/- as stamp duty is without any authority, against the law and facts and based on ill will and ineffective upon the rights of the plaintiff? OPP*
11. *Relief.*

7. After recording of evidence of both sides, learned Civil Judge, Khushab dismissed the suit of the respondent vide judgment and decree dated 02.07.2010. The respondent preferred an appeal before the learned District Judge, Khushab which was accepted vide judgment and decree dated 21.06.2012, challenged herein.

8. Notice to the respondent was ordered to be issued by this Court on 06.04.2016. When the respondent could not be served on his last known address, an order for substituted service was passed on 15.11.2016. None appeared on behalf of the respondent despite publication of the notice in the newspaper “Daily Nawa-i-Waqt” on 20.01.2017, therefore, he was proceeded ex-parte vide order dated 13.02.2017.

9. Learned counsel for the petitioners contends that judgments of the courts below are at variance; that *vires* of the Valuation Table of the District Collector was not challenged in the suit on the ground that the same was not duly “notified” and that no such issue was framed on which the appellate court recorded its findings in paragraph No.8 of the impugned judgment; that the Valuation Table in question satisfied all requirements of Section 27-A of the Stamp Act, 1899 (“**Act**”); that the impugned judgment and decree passed by the learned District Judge Khushab is based on misreading and non-reading of entire record as well as misconstruction of law.

10. Arguments heard. Record perused.

11. For it to be effective and applicable, the Valuation Table determining the value of properties situated in the concerned locality is to be “notified” by the District Collector. It is a mandatory requirement of the law specified in Section 27-A of the Act.¹ The term “notified” has not been defined in the said Act and the same has been subject matter of judicial construction. The term “notify” has been judicially defined to mean give notice, proclaim or publish in any recognized manner.² Whether or not the word “notified” used in any statute would require publication of a notification in the Official Gazette depends upon the nature and object of a particular statute and involvement of rights and obligations of the persons involved.³ The Act is a fiscal legislation that creates a burden and liability to pay stamp duty on occurrence of various taxable events specified therein. Section 27-A of the said Act relates to prescription of valuation of properties for the purpose of levy of a tax. In fact, by insertion of section 27-A *ibid*, the discretion of parties in fixing the valuation of property for the purpose of payment of stamp duty has been taken away, however, the effect of the Valuation Table has been judicially recognized to commence from the date when it is duly “notified” i.e. published in the Official Gazette⁴

12. There is no inherent power vested in the petitioners. The only authority vested in them is the one conferred by law.⁵ To enjoy the protection of law and to be treated in accordance with law is inalienable right of the respondent guaranteed by the Constitution.⁶ The impugned notice for recovery of the stamp duty is without lawful authority if the same has been issued without satisfying the requirements of law. There is

¹ *Mubarak Ahmad v. Sub-Registrar, District Courts, Faisalabad* (1993 CLC 1666); *Abdul Sattar v. Province of the Punjab etc.* (1995 CLC 187);

² *Karachi Metropolitan Corporation v. M/S S.N.H. Industries (Pvt.) Ltd* (1997 SCMR 1228)

³ *Saghir Ahmad v. Province of the Punjab* (PLD 2004 SC 261)

⁴ *Mubarak Ahmad v. Sub-Registrar, District Courts, Faisalabad* (1993 CLC 1666); *Abdul Sattar v. Province of the Punjab etc.* (1995 CLC 187); *Province of Punjab v. M/s Marhaba Dawakhana* (1999 CLC 450); *Muhammad Suleman Khan v.D.C./Registrar, Lahore District* (2002 CLC 226); and *Allah Ditta v. Amjad Saeed* (PLD 2009 Lah 440).

⁵ *Pakistan Muslim League (N) v. Federation of Pakistan* (PLD 2007 SC 642), para 26.

⁶ Article 4 of the Constitution of Islamic Republic of Pakistan, 1973.

no estoppel against law.⁷ It is trite law that pleadings of the parties would not control or govern the application of correct law to established or proved facts.⁸

13. It is manifest from perusal of the judgment and decree impugned that the suit filed by respondent has been decreed by the learned appellate court essentially on the basis of its findings on issue No.10. The learned District Judge, while recording his findings on the aforementioned issue in favour of the respondent, noted that the petitioners have not produced any concerned officer before the learned trial court to prove that the Valuation Table was published in the Official Gazette or newspaper or that it was made known to the public or by beat of drum or by affixation of the same at some conspicuous place in the locality, including on the notice board at respective offices of the Assistant Collectors, therefore, the same was not proved to have been duly notified on the relevant date to satisfy the requirement of Section 27-A of the Act, resultantly the demand of the stamp duty pursuant thereto through the notice impugned was declared to be unlawful.

14. From perusal of the issues framed by the learned trial court on the basis of divergent pleadings of the parties, it is apparent that no specific issue was framed on whether the Valuation Table in question was duly notified, if so, on which date? However, the issue No. 10 framed by the learned trial court was comprehensive enough to allow the courts below to give their respective findings on validity or otherwise of the notice dated 04.05.2001 for the payment of Rs.12,78,000/- as stamp duty on any ground of illegality or absence of lawful authority including legal effect of the Valuation Table (Ex.D2). It is trite law that framing or non-framing of an issue cannot be a ground for reversing the judgment and decree of any court when the same does not cause prejudice to the case of a party.⁹ No

⁷ *University of Malakand v. Alam Zeb and other* (2021 SCMR 678); *Commissioner of Income Tax v. Habib Bank Limited and another* (2015 PTD 619).

⁸ *Abdul Sattar v. Mst. Sardar Begum & others* (1992 SCMR 417).

⁹ *Muhammad Ibrahim v. Taza Gul & others* (2020 SCMR 2033); *Abdul Karim v. Haji Noor Badshah* (2012 SCMR 212); *Sh. Fateh Muhammad v. Muhammad Adil* (PLD 2007 S.C.460); *The Province of East Pakistan v. Major Nawab Khawaja Hassan Askary and others* (PLD 1971 S.C.82)

prejudice is shown to have been caused to the Petitioners because of non-framing of any specific issue in the presence of issue No. 10 *ibid*.

15. In order to discharge his onus of proof on issue No. 10, the respondent produced Muhammad Aamer Sajjad as P.W.1 before the learned trial court who deposed that the impugned notice for recovery of additional duty of more than Rs. 12,00,000/- is in violation of law, contrary to facts and based on *mala fide*. In rebuttal thereof, the petitioners produced in evidence a copy of the notification dated 28.5.1998 issued by the District Collector, Khushab containing the Valuation Table (Ex.D-2), however, they failed to produce any copy of the said notification published in the official Gazette or otherwise duly notified in terms of Section 27-A of the Act. It is evident from the record that the above findings have been recorded and the impugned judgment has been handed down by the appellate court on specific plea of the respondent as taken in ground No. iv of his appeal, therefore, such findings cannot be termed as a matter of surprise for the petitioners. At appellate stage, no application for additional evidence was filed by them to seek an opportunity to establish the fact that the Valuation Table was duly notified under section 27-A of the Act. Even before this court, it is not the case of the petitioners that the Valuation Table (Ex.D-2) was duly notified under Section 27-A of the Act on the relevant date. There is, therefore, no merit in the titled civil revision filed by the petitioner.

16. For the reasons stated herein above, the titled Civil Revision is dismissed with no orders as to costs.

JUDGE

Announced in open Court on 20.9.2021.

JUDGE

Rafiq*